

23STCV25804 23STCV25804

County: los-angeles

Division: Civil Law and Motion

Department: 733

Hearing date: 2026-09-01

Motion: PLAINTIFF'S MOTION TO ADVANCE TRIAL DATE

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Case Number: 23STCV25804 Hearing Date: September 1, 2026 Dept: 733

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES

ANITA DAVIS,

Plaintiff,

vs.

STARS BEHAVIORAL HEALTH GROUP, INC.; DONTE KELLEY; and DOES

1 to 10,

Defendants.

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CASE NO.: 23STCV25804

[TENTATIVE] ORDER RE:

PLAINTIFF'S MOTION TO ADVANCE TRIAL DATE

Dept. 733

8:30 a.m.

September 1, 2026

I.

INTRODUCTION

This is a FEHA
action.

On October 23,
2023, Plaintiff Anita Davis ("Plaintiff") filed a complaint against Defendants
Stars Behavioral Health Group, Inc. ("SVBH") and Donte Kelley ("Kelley")
("Defendants"), alleging causes of action for (1) Wrongful Termination in
Violation of Public Policy, (2) Family Leave Retaliation, (3) Paid Sick Leave
Discrimination, (4) Paid Sick Leave Retaliation, (5) Family Leave Discrimination,
(6) Retaliation for Requesting and Using Accommodations for Disabilities, (7)
Failure to Engage in a Timely, Good Faith, Interactive Process to Determine
Reasonable Accommodation for Disability, (8) Failure to Reasonably Accommodate
Disabilities, (9) Disability Discrimination, (10) Discrimination based on Race
– Disparate Treatment, (11) Sex Discrimination, (12) Harassment based on Race,
(13) Sexual Harassment, (14) Retaliation for Opposing FEHA Violations, (15)

Failure to Prevent and Stop Harassment, Discrimination and Retaliation, and
(16) Whistleblower Retaliation.

On August 22,
2025, the Court granted Defendants' ex parte application to continue trial.
Trial is not set for August 23, 2027.

On March 26, 2026, the
Court granted in part denied in part Defendants' motion for

summary judgment, or in the
alternative, summary adjudication. The Court denied the motion as to the
fifteenth cause of action only. Thus, the only causes of action that remain at
issue is Plaintiff's causes of action for harassment based on race, sexual
harassment, and failure to prevent and stop harassment, discrimination, and
retaliation.

On
July 21, 2026, Plaintiff filed the instant motion to advance trial.

On
August 19, 2026, Defendants filed an opposition.

No
reply was filed.

II. DISCUSSION

Plaintiff moves
to advance the trial date, currently set for August 23, 2027, to a time between
December 1, 2026 and April 30, 2027 (excluding the weeks of December 28, 2026
and March 30, 2027). The Court denies Plaintiff's motion.

A request to advance a case for trial "may be granted only
upon an affirmative showing by the moving party of good cause based on a
declaration served and filed with the motion or application." (Cal. Rules of
Court, rule 3.1335(b).)

Here, Defendants filed an ex parte application to advance

the hearing date on their motion for summary adjudication or, in the alternative, to continue trial, to which Plaintiff did not oppose. The Court then granted by continuing the trial date, to a date that worked with the Court's trial calendar.

Now, Plaintiff

seeks to advance the trial on the grounds that "the case is ready for trial," as discovery is now complete, an earlier trial date might encourage settlement, and witness memory may fade. These speculative reasons simply do not constitute good cause, as they reflect the usual succession and associated risks inherent within litigation. That the case has continued to move forward precisely as anticipated does not constitute a changed circumstance warranting disruption of the Court's already congested trial schedule.

III.

CONCLUSION

Based on the foregoing, Plaintiff's motion to advance the trial date is DENIED.

Dated this 1st
day of September 2026

Hon. Gary D.
Roberts

Judge of the
Superior Court